

Section 153. (Constitution of Special Courts): --- (1) The State Government may, for the purposes of providing speedy trial of offences referred to in ¹[sections 135 to 140 and section 150], by notification in the Official Gazette, constitute as many

¹ Subs. by Act 26 of 2007, Sec.17 for the words "*sections 135 to 139*" (w.e.f. 15th June 2007).

Special Courts as may be necessary for such area or areas, as may be specified in the notification.

(2) A Special Court shall consist of a single Judge who shall be appointed by the State Government with the concurrence of the High Court.

(3) A person shall not be qualified for appointment as a Judge of a Special Court unless he was, immediately before such appointment, an Additional District and Sessions Judge.

(4) Where the office of the Judge of a Special Court is vacant, or such Judge is absent from the ordinary place of sitting of such Special Court, or he is incapacitated by illness or otherwise for the performance of his duties, any urgent business in the Special Court shall be disposed of –

- (a) by a Judge, if any, exercising jurisdiction in the Special Court;
- (b) where there is no such other Judge available, in accordance with the direction of District and Sessions Judge having jurisdiction over the ordinary place of sitting of Special Court, as notified under sub section (1).